

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO H.B. 2957
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-101, Arizona Revised Statutes, is amended to
3 read:

4 28-101. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Alcohol" means any substance containing any form of alcohol,
7 including ethanol, methanol, propynol and isopropynol.

8 2. "Alcohol concentration" if expressed as a percentage means
9 either:

10 (a) The number of grams of alcohol per one hundred milliliters of
11 blood.

12 (b) The number of grams of alcohol per two hundred ten liters of
13 breath.

14 3. "All-terrain vehicle" means either of the following:

15 (a) A motor vehicle that satisfies all of the following:

16 (i) Is designed primarily for recreational nonhighway all-terrain
17 travel.

18 (ii) Is fifty or fewer inches in width.

19 (iii) Has an unladen weight of one thousand two hundred pounds or
20 less.

21 (iv) Travels on three or more nonhighway tires.

22 (v) Is operated on a public highway.

23 (b) A recreational off-highway vehicle that satisfies all of the
24 following:

25 (i) Is designed primarily for recreational nonhighway all-terrain
26 travel.

27 (ii) Is eighty or fewer inches in width.

28 (iii) Has an unladen weight of two thousand five hundred pounds or
29 less.

- 1 (iv) Travels on four or more nonhighway tires.
- 2 (v) Has a steering wheel for steering control.
- 3 (vi) Has a rollover protective structure.
- 4 (vii) Has an occupant retention system.
- 5 4. "Authorized emergency vehicle" means any of the following:
- 6 (a) A fire department vehicle.
- 7 (b) A police vehicle.
- 8 (c) An ambulance or emergency vehicle of a municipal department or
- 9 public service corporation that is designated or authorized by the
- 10 department or a local authority.
- 11 (d) Any other ambulance, fire truck or rescue vehicle that is
- 12 authorized by the department in its sole discretion and that meets
- 13 liability insurance requirements prescribed by the department.
- 14 5. "Autocycle" means a three-wheeled motorcycle on which the driver
- 15 and passengers ride in a fully or partially enclosed seating area that is
- 16 equipped with a roll cage, safety belts for each occupant and antilock
- 17 brakes and that is designed to be controlled with a steering wheel and
- 18 pedals.
- 19 6. "Automated driving system" means the hardware and software that
- 20 are collectively capable of performing the entire dynamic driving task on
- 21 a sustained basis, regardless of whether it is limited to a specific
- 22 operational design domain.
- 23 7. "Automotive recycler" means a person that is engaged in the
- 24 business of buying or acquiring a motor vehicle solely for the purpose of
- 25 dismantling, selling or otherwise disposing of the parts or accessories
- 26 and that removes parts for resale from six or more vehicles in a calendar
- 27 year.
- 28 8. "Autonomous vehicle" means a motor vehicle that is equipped with
- 29 an automated driving system.
- 30 9. "Aviation fuel" means all flammable liquids composed of a
- 31 mixture of selected hydrocarbons expressly manufactured and blended for
- 32 the purpose of effectively and efficiently operating an internal
- 33 combustion engine for use in an aircraft but does not include fuel for jet
- 34 or turbine powered aircraft.
- 35 10. "Bicycle" means a device, including a racing wheelchair, that
- 36 is propelled by human power and on which a person may ride and that has
- 37 either:
- 38 (a) Two tandem wheels, either of which is more than sixteen inches
- 39 in diameter.
- 40 (b) Three wheels in contact with the ground, any of which is more
- 41 than sixteen inches in diameter.
- 42 11. "Board" means the transportation board.
- 43 12. "Bus" means a motor vehicle designed for carrying sixteen or
- 44 more passengers, including the driver.
- 45 13. "Business district" means the territory contiguous to and
- 46 including a highway if there are buildings in use for business or
- 47 industrial purposes within any six hundred feet along the highway,

1 including hotels, banks or office buildings, railroad stations and public
2 buildings that occupy at least three hundred feet of frontage on one side
3 or three hundred feet collectively on both sides of the highway.

4 14. "Certificate of ownership" means a paper or an electronic
5 record that is issued in another state or a foreign jurisdiction and that
6 indicates ownership of a vehicle.

7 15. "Certificate of title" means a paper document or an electronic
8 record that is issued by the department and that indicates ownership of a
9 vehicle.

10 16. "Combination of vehicles" means a truck or truck tractor and
11 semitrailer and any trailer that it tows but does not include a forklift
12 designed for the purpose of loading or unloading the truck, trailer or
13 semitrailer.

14 17. "Controlled substance" means a substance so classified under
15 section 102(6) of the controlled substances act (21 United States Code
16 section 802(6)) and includes all substances listed in schedules I through
17 V of 21 Code of Federal Regulations part 1308.

18 18. "Conviction" means:

19 (a) An unvacated adjudication of guilt or a determination that a
20 person violated or failed to comply with the law in a court of original
21 jurisdiction or by an authorized administrative tribunal.

22 (b) An unvacated forfeiture of bail or collateral deposited to
23 secure the person's appearance in court.

24 (c) A plea of guilty or no contest accepted by the court.

25 (d) The payment of a fine or court costs.

26 19. "County highway" means a public road that is constructed and
27 maintained by a county.

28 20. "Dealer" means a person who is engaged in the business of
29 buying, selling or exchanging motor vehicles, trailers or semitrailers and
30 who has an established place of business and has paid fees pursuant to
31 section 28-4302.

32 21. "Department" means the department of transportation acting
33 directly or through its duly authorized officers and agents.

34 22. "Digital network or software application" has the same meaning
35 prescribed in section 28-9551.

36 23. "Director" means the director of the department of
37 transportation.

38 24. "Drive" means to operate or be in actual physical control of a
39 motor vehicle.

40 25. "Driver" means a person who drives or is in actual physical
41 control of a vehicle.

42 26. "Driver license" means a license that is issued by a state to
43 an individual and that authorizes the individual to drive a motor vehicle.

44 27. "Dynamic driving task":

45 (a) Means all of the real-time operational and tactical functions
46 required to operate a vehicle in on-road traffic.

47 (b) Includes:

- 1 (i) Lateral vehicle motion control by steering.
- 2 (ii) Longitudinal motion control by acceleration and deceleration.
- 3 (iii) Monitoring the driving environment by object and event
- 4 detection, recognition, classification and response preparation.
- 5 (iv) Object and event response execution.
- 6 (v) Maneuver planning.
- 7 (vi) Enhancing conspicuity by lighting, signaling and gesturing.
- 8 (c) Does not include strategic functions such as trip scheduling
- 9 and selecting destinations and waypoints.
- 10 28. "Electric bicycle" means a bicycle or tricycle that is equipped
- 11 with fully operable pedals and an electric motor of less than seven
- 12 hundred fifty watts and that meets the requirements of one of the
- 13 following classes:
- 14 (a) "Class 1 electric bicycle" means a bicycle or tricycle that is
- 15 equipped with an electric motor that provides assistance only when the
- 16 rider is pedaling and that ceases to provide assistance when the bicycle
- 17 or tricycle reaches the speed of twenty miles per hour.
- 18 (b) "Class 2 electric bicycle" means a bicycle or tricycle that is
- 19 equipped with an electric motor that may be used exclusively to propel the
- 20 bicycle or tricycle and that is not capable of providing assistance when
- 21 the bicycle or tricycle reaches the speed of twenty miles per hour.
- 22 (c) "Class 3 electric bicycle" means a bicycle or tricycle that is
- 23 equipped with an electric motor that provides assistance only when the
- 24 rider is pedaling and that ceases to provide assistance when the bicycle
- 25 or tricycle reaches the speed of twenty-eight miles per hour.
- 26 29. "Electric miniature scooter" means a device that:
- 27 (a) Weighs less than thirty pounds.
- 28 (b) Has two or three wheels.
- 29 (c) Has handlebars.
- 30 (d) Has a floorboard on which a person may stand while riding.
- 31 (e) Is powered by an electric motor or human power, or both.
- 32 (f) Has a maximum speed that does not exceed ten miles per hour,
- 33 with or without human propulsion, on a paved level surface.
- 34 30. "Electric personal assistive mobility device" means a
- 35 self-balancing device with one wheel or two nontandem wheels and an
- 36 electric propulsion system that limits the maximum speed of the device to
- 37 fifteen miles per hour or less and that is designed to transport only one
- 38 person.
- 39 31. "Electric standup scooter":
- 40 (a) Means a device that:
- 41 (i) Weighs less than seventy-five pounds.
- 42 (ii) Has two or three wheels.
- 43 (iii) Has handlebars.
- 44 (iv) Has a floorboard on which a person may stand while riding.
- 45 (v) Is powered by an electric motor or human power, or both.
- 46 (vi) Has a maximum speed that does not exceed twenty miles per
- 47 hour, with or without human propulsion, on a paved level surface.

1 (b) Does not include an electric miniature scooter.

2 32. "Evidence" includes both of the following:

3 (a) A display on a wireless communication device of a
4 department-generated ~~driver license, nonoperating identification license,~~
5 vehicle registration card or other official record of the department that
6 is presented to a law enforcement officer or in a court or an
7 administrative proceeding.

8 (b) An electronic or digital license plate authorized pursuant to
9 section 28-364.

10 33. "Farm" means any lands primarily used for agriculture
11 production.

12 34. "Farm tractor" means a motor vehicle designed and used
13 primarily as a farm implement for drawing implements of husbandry.

14 35. "Foreign vehicle" means a motor vehicle, trailer or semitrailer
15 that is brought into this state other than in the ordinary course of
16 business by or through a manufacturer or dealer and that has not been
17 registered in this state.

18 36. "Fully autonomous vehicle" means an autonomous vehicle that is
19 equipped with an automated driving system designed to function as a level
20 four or five system under SAE J3016 and that may be designed to function
21 either:

22 (a) Solely by use of the automated driving system.

23 (b) By a human driver when the automated driving system is not
24 engaged.

25 37. "Golf cart" means a motor vehicle that has not less than three
26 wheels in contact with the ground, that has an unladen weight of less than
27 one thousand eight hundred pounds, that is designed to be and is operated
28 at not more than twenty-five miles per hour and that is designed to carry
29 not more than four persons including the driver.

30 38. "Gross combined weight rating" means the sum of the gross
31 vehicle weight rating of a motor vehicle and the trailer or semitrailer
32 the motor vehicle tows.

33 39. "Gross vehicle weight rating" means the weight that is assigned
34 by the motor vehicle manufacturer to a motor vehicle and that represents
35 the maximum recommended total weight, including the vehicle and the load
36 for the vehicle.

37 40. "Hazardous material" means a material, and its mixtures or
38 solutions, that the United States department of transportation determines
39 under 49 Code of Federal Regulations is, or any quantity of a material
40 listed as a select agent or toxin under 42 Code of Federal Regulations
41 part 73 that is, capable of posing an unreasonable risk to health, safety
42 and property if transported in commerce and that is required to be
43 placarded or marked as required by the department's safety rules
44 prescribed pursuant to chapter 14 of this title.

45 41. "Human driver" means a natural person in the vehicle who
46 performs in real time all or part of the dynamic driving task or who
47 achieves a minimal risk condition for the vehicle.

1 42. "Implement of husbandry" means a vehicle that is designed
2 primarily for agricultural purposes and that is used exclusively in the
3 conduct of agricultural operations, including an implement or vehicle that
4 uses an automated driving system or that is autonomous or that is
5 self-propelled or otherwise, whether operated manually, equipped with an
6 automated driving system that is not in use or equipped with an automated
7 driving system that is in use, and that meets both of the following
8 conditions:

9 (a) Is used solely for agricultural purposes, including the
10 preparation or harvesting of cotton, alfalfa, grains, specialty crops and
11 other farm crops. For the purposes of this subdivision, "specialty crops"
12 includes fruits, vegetables, tree nuts, dried fruits and horticulture and
13 nursery crops, including floriculture.

14 (b) Is only incidentally operated or moved on a highway whether as
15 a trailer or an autonomous vehicle or a self-propelled unit. For the
16 purposes of this subdivision, "incidentally operated or moved on a
17 highway" means travel between a farm and another part of the same farm,
18 from one farm to another farm or between a farm and a place of repair,
19 supply or storage.

20 43. "Limousine" means a motor vehicle providing prearranged ground
21 transportation service for an individual passenger, or a group of
22 passengers, that is arranged in advance or is operated on a regular route
23 or between specified points and includes ground transportation under a
24 contract or agreement for services that includes a fixed rate or time and
25 is provided in a motor vehicle with a seating capacity not exceeding
26 fifteen passengers including the driver.

27 44. "Livery vehicle" means a motor vehicle that:

28 (a) Has a seating capacity not exceeding fifteen passengers
29 including the driver.

30 (b) Provides passenger services for a fare determined by a flat
31 rate or flat hourly rate between geographic zones or within a geographic
32 area.

33 (c) Is available for hire on an exclusive or shared ride basis.

34 (d) May do any of the following:

35 (i) Operate on a regular route or between specified places.

36 (ii) Offer prearranged ground transportation service as defined in
37 section 28-141.

38 (iii) Offer on demand ground transportation service pursuant to a
39 contract with a public airport, licensed business entity or organization.

40 45. "Local authority" means any county, municipal or other local
41 board or body exercising jurisdiction over highways under the constitution
42 and laws of this state.

43 46. "Manufacturer" means a person engaged in the business of
44 manufacturing motor vehicles, trailers or semitrailers.

45 47. "Minimal risk condition":

1 (a) Means a condition to which a human driver or an automated
2 driving system may bring a vehicle in order to reduce the risk of a crash
3 when a given trip cannot or should not be completed.

4 (b) Includes bringing the vehicle to a complete stop.

5 48. "Moped" means a bicycle, not including an electric bicycle, an
6 electric miniature scooter or an electric standup scooter, that is
7 equipped with a helper motor if the vehicle has a maximum piston
8 displacement of fifty cubic centimeters or less, a brake horsepower of one
9 and one-half or less and a maximum speed of twenty-five miles per hour or
10 less on a flat surface with less than a one percent grade.

11 49. "Motorcycle" means a motor vehicle that has a seat or saddle
12 for the use of the rider and that is designed to travel on not more than
13 three wheels in contact with the ground but excludes a tractor, an
14 electric bicycle, an electric miniature scooter, an electric standup
15 scooter and a moped.

16 50. "Motor driven cycle" means a motorcycle, including every motor
17 scooter, with a motor that produces not more than five horsepower but does
18 not include an electric bicycle, an electric miniature scooter or an
19 electric standup scooter.

20 51. "Motorized quadricycle" means a self-propelled motor vehicle to
21 which all of the following apply:

22 (a) The vehicle is self-propelled by an emission-free electric
23 motor and may include pedals operated by the passengers.

24 (b) The vehicle has at least four wheels in contact with the
25 ground.

26 (c) The vehicle seats at least eight passengers, including the
27 driver.

28 (d) The vehicle is operable on a flat surface using solely the
29 electric motor without assistance from the pedals or passengers.

30 (e) The vehicle is a commercial motor vehicle as defined in section
31 28-5201.

32 (f) The vehicle is a limousine operating under a vehicle for hire
33 company permit issued pursuant to section 28-9503.

34 (g) The vehicle is manufactured by a motor vehicle manufacturer
35 that is licensed pursuant to chapter 10 of this title.

36 (h) The vehicle complies with the definition and standards for
37 low-speed vehicles set forth in 49 Code of Federal Regulations sections
38 571.3(b) and 571.500, respectively.

39 52. "Motor vehicle":

40 (a) Means either:

41 (i) A self-propelled vehicle.

42 (ii) For the purposes of the laws relating to the imposition of a
43 tax on motor vehicle fuel, a vehicle that is operated on the highways of
44 this state and that is propelled by the use of motor vehicle fuel.

45 (b) Does not include a scrap vehicle, a personal delivery device, a
46 personal mobile cargo carrying device, a motorized wheelchair, an electric
47 personal assistive mobility device, an electric bicycle, an electric

1 miniature scooter, an electric standup scooter or a motorized skateboard.
2 For the purposes of this subdivision:

3 (i) "Motorized skateboard" means a self-propelled device that does
4 not have handlebars and that has a motor, a deck on which a person may
5 ride and at least two tandem wheels in contact with the ground.

6 (ii) "Motorized wheelchair" means a self-propelled wheelchair that
7 is used by a person for mobility.

8 53. "Motor vehicle fuel" includes all products that are commonly or
9 commercially known or sold as gasoline, including casinghead gasoline,
10 natural gasoline and all flammable liquids, and that are composed of a
11 mixture of selected hydrocarbons expressly manufactured and blended for
12 the purpose of effectively and efficiently operating internal combustion
13 engines. Motor vehicle fuel does not include inflammable liquids that are
14 specifically manufactured for racing motor vehicles and that are
15 distributed for and used by racing motor vehicles at a racetrack, use fuel
16 as defined in section 28-5601, aviation fuel, fuel for jet or turbine
17 powered aircraft or the mixture created at the interface of two different
18 substances being transported through a pipeline, commonly known as
19 transmix.

20 54. "Neighborhood electric shuttle":

21 (a) Means a self-propelled electrically powered motor vehicle to
22 which all of the following apply:

23 (i) The vehicle is emission free.

24 (ii) The vehicle has at least four wheels in contact with the
25 ground.

26 (iii) The vehicle is capable of transporting at least eight
27 passengers, including the driver.

28 (iv) The vehicle is a commercial motor vehicle as defined in
29 section 28-5201.

30 (v) The vehicle is a vehicle for hire as defined in section 28-9501
31 and operates under a vehicle for hire company permit issued pursuant to
32 section 28-9503.

33 (vi) The vehicle complies with the definition and standards for
34 low-speed vehicles set forth in 49 Code of Federal Regulations sections
35 571.3(b) and 571.500, respectively.

36 (b) Includes a vehicle that meets the standards prescribed in
37 subdivision (a) of this paragraph and that has been modified after market
38 and not by the manufacturer to transport up to fifteen passengers,
39 including the driver.

40 55. "Neighborhood electric vehicle" means a self-propelled
41 electrically powered motor vehicle to which all of the following apply:

42 (a) The vehicle is emission free.

43 (b) The vehicle has at least four wheels in contact with the
44 ground.

45 (c) The vehicle complies with the definition and standards for
46 low-speed vehicles, unless excepted or exempted under federal law, set

1 forth in 49 Code of Federal Regulations sections 571.3(b) and 571.500,
2 respectively.

3 56. "Neighborhood occupantless electric vehicle" means a
4 neighborhood electric vehicle that is not designed, intended or marketed
5 for human occupancy.

6 57. "Nonresident" means a person who is not a resident of this
7 state as defined in section 28-2001.

8 58. "Off-road recreational motor vehicle" means a motor vehicle
9 that is designed primarily for recreational nonhighway all-terrain travel
10 and that is not operated on a public highway. Off-road recreational motor
11 vehicle does not mean a motor vehicle used for construction, building
12 trade, mining or agricultural purposes.

13 59. "Operational design domain":

14 (a) Means operating conditions under which a given automated
15 driving system is specifically designed to function.

16 (b) Includes roadway types, speed range, environmental conditions,
17 such as weather or time of day, and other domain constraints.

18 60. "Operator" means a person who drives a motor vehicle on a
19 highway, who is in actual physical control of a motor vehicle on a highway
20 or who is exercising control over or steering a vehicle being towed by a
21 motor vehicle.

22 61. "Owner" means:

23 (a) A person who holds the legal title of a vehicle.

24 (b) If a vehicle is the subject of an agreement for the conditional
25 sale or lease with the right of purchase on performance of the conditions
26 stated in the agreement and with an immediate right of possession vested
27 in the conditional vendee or lessee, the conditional vendee or lessee.

28 (c) If a mortgagor of a vehicle is entitled to possession of the
29 vehicle, the mortgagor.

30 62. "Pedestrian" means any person afoot. A person who uses an
31 electric personal assistive mobility device or a manual or motorized
32 wheelchair is considered a pedestrian unless the manual wheelchair
33 qualifies as a bicycle. For the purposes of this paragraph, "motorized
34 wheelchair" means a self-propelled wheelchair that is used by a person for
35 mobility.

36 63. "Personal delivery device":

37 (a) Means a device that is both of the following:

38 (i) Manufactured for transporting cargo and goods in an area
39 described in section 28-1225.

40 (ii) Equipped with automated driving technology, including software
41 and hardware, that enables the operation of the device with the remote
42 support and supervision of a human.

43 (b) Does not include a personal mobile cargo carrying device.

44 64. "Personal mobile cargo carrying device" means an electronically
45 powered device that:

46 (a) Is operated primarily on sidewalks and within crosswalks and
47 that is designed to transport property.

1 (b) Weighs less than eighty pounds, excluding cargo.

2 (c) Operates at a maximum speed of twelve miles per hour.

3 (d) Is equipped with technology to transport personal property with
4 the active monitoring of a property owner and that is primarily designed
5 to remain within twenty-five feet of the property owner.

6 (e) Is equipped with a braking system that when active or engaged
7 enables the personal mobile cargo carrying device to come to a controlled
8 stop.

9 65. "Power sweeper" means an implement, with or without motive
10 power, that is only incidentally operated or moved on a street or highway
11 and that is designed for the removal of debris, dirt, gravel, litter or
12 sand whether by broom, vacuum or regenerative air system from asphaltic
13 concrete or cement concrete surfaces, including parking lots, highways,
14 streets and warehouses, and a vehicle on which the implement is
15 permanently mounted.

16 66. "Public transit" means the transportation of passengers on
17 scheduled routes by means of a conveyance on an individual passenger
18 fare-paying basis excluding transportation by a sightseeing bus, school
19 bus or taxi or a vehicle not operated on a scheduled route basis.

20 67. "Reconstructed vehicle" means a vehicle that has been assembled
21 or constructed largely by means of essential parts, new or used, derived
22 from vehicles or makes of vehicles of various names, models and types or
23 that, if originally otherwise constructed, has been materially altered by
24 the removal of essential parts or by the addition or substitution of
25 essential parts, new or used, derived from other vehicles or makes of
26 vehicles. For the purposes of this paragraph, "essential parts" means
27 integral and body parts, the removal, alteration or substitution of which
28 will tend to conceal the identity or substantially alter the appearance of
29 the vehicle.

30 68. "Residence district" means the territory contiguous to and
31 including a highway not comprising a business district if the property on
32 the highway for a distance of three hundred feet or more is in the main
33 improved with residences or residences and buildings in use for business.

34 69. "Right-of-way" when used within the context of the regulation
35 of the movement of traffic on a highway means the privilege of the
36 immediate use of the highway. Right-of-way when used within the context
37 of the real property on which transportation facilities and appurtenances
38 to the facilities are constructed or maintained means the lands or
39 interest in lands within the right-of-way boundaries.

40 70. "SAE J3016" means surface transportation recommended practice
41 J3016 taxonomy and definitions for terms related to driving automation
42 systems for on-road motor vehicles published by SAE international in June
43 2018.

44 71. "School bus" means a motor vehicle that is designed for
45 carrying more than ten passengers and that is either:

1 (a) Owned by any public or governmental agency or other institution
2 and operated for the transportation of children to or from home or school
3 on a regularly scheduled basis.

4 (b) Privately owned and operated for compensation for the
5 transportation of children to or from home or school on a regularly
6 scheduled basis.

7 72. "Scrap metal dealer" has the same meaning prescribed in section
8 44-1641.

9 73. "Scrap vehicle" has the same meaning prescribed in section
10 44-1641.

11 74. "Semitrailer" means a vehicle that is with or without motive
12 power, other than a pole trailer or single-axle tow dolly, that is
13 designed for carrying persons or property and for being drawn by a motor
14 vehicle and that is constructed so that some part of its weight and that
15 of its load rests on or is carried by another vehicle. For the purposes of
16 this paragraph, "pole trailer" has the same meaning prescribed in section
17 28-601.

18 75. "Single-axle tow dolly" means a nonvehicle device that is drawn
19 by a motor vehicle, that is designed and used exclusively to transport
20 another motor vehicle and on which the front or rear wheels of the drawn
21 motor vehicle are mounted on the tow dolly while the other wheels of the
22 drawn motor vehicle remain in contact with the ground.

23 76. "State" means a state of the United States and the District of
24 Columbia.

25 77. "State highway" means a state route or portion of a state route
26 that is accepted and designated by the board as a state highway and that
27 is maintained by the state.

28 78. "State route" means a right-of-way whether actually used as a
29 highway or not that is designated by the board as a location for the
30 construction of a state highway.

31 79. "Street" or "highway" means the entire width between the
32 boundary lines of every way if a part of the way is open to the use of the
33 public for purposes of vehicular travel.

34 80. "Taxi" means a motor vehicle that has a seating capacity not
35 exceeding fifteen passengers, including the driver, that provides
36 passenger services and that:

37 (a) Does not primarily operate on a regular route or between
38 specified places.

39 (b) Offers local transportation for a fare determined on the basis
40 of the distance traveled or prearranged ground transportation service as
41 defined in section 28-141 for a predetermined fare.

42 81. "Title transfer form" means a paper or an electronic form that
43 is prescribed by the department for the purpose of transferring a
44 certificate of title from one owner to another owner.

45 82. "Traffic survival school" means a school that is licensed
46 pursuant to chapter 8, article 7.1 of this title and that offers

1 educational sessions that are designed to improve the safety and habits of
2 drivers and that are approved by the department.

3 83. "Trailer" means a vehicle that is with or without motive power,
4 other than a pole trailer or single-axle tow dolly, that is designed for
5 carrying persons or property and for being drawn by a motor vehicle and
6 that is constructed so that no part of its weight rests on the towing
7 vehicle. A semitrailer equipped with an auxiliary front axle commonly
8 known as a dolly is deemed to be a trailer. For the purposes of this
9 paragraph, "pole trailer" has the same meaning prescribed in section
10 28-601.

11 84. "Transportation network company" has the same meaning
12 prescribed in section 28-9551.

13 85. "Transportation network company vehicle" has the same meaning
14 prescribed in section 28-9551.

15 86. "Transportation network service" has the same meaning
16 prescribed in section 28-9551.

17 87. "Truck" means a motor vehicle designed or used primarily for
18 the carrying of property other than the effects of the driver or
19 passengers and includes a motor vehicle to which has been added a box, a
20 platform or other equipment for such carrying.

21 88. "Truck tractor" means a motor vehicle that is designed and used
22 primarily for drawing other vehicles and that is not constructed to carry
23 a load other than a part of the weight of the vehicle and load drawn.

24 89. "Vehicle":

25 (a) Means a device in, on or by which a person or property is or
26 may be transported or drawn on a public highway.

27 (b) Does not include:

28 (i) Electric bicycles, electric miniature scooters, electric
29 standup scooters and devices moved by human power.

30 (ii) Devices used exclusively on stationary rails or tracks.

31 (iii) Personal delivery devices.

32 (iv) Scrap vehicles.

33 (v) Personal mobile cargo carrying devices.

34 90. "Vehicle transporter" means either:

35 (a) A truck tractor capable of carrying a load and drawing a
36 semitrailer.

37 (b) A truck tractor with a stinger-steered fifth wheel capable of
38 carrying a load and drawing a semitrailer or a truck tractor with a dolly
39 mounted fifth wheel that is securely fastened to the truck tractor at two
40 or more points and that is capable of carrying a load and drawing a
41 semitrailer.

42 Sec. 2. Section 28-338, Arizona Revised Statutes, is amended to
43 read:

44 28-338. Enhanced driver license prohibition

45 A. This state shall not participate in the implementation of OR
46 REQUIRE A PERSON TO PARTICIPATE IN an enhanced driver license program to
47 satisfy the requirements of the federal western hemisphere travel

1 initiative or the REAL ID act of 2005 (P.L. 109-13, division B; 119 Stat.
2 302). The department shall not implement OR REQUIRE A PERSON TO
3 PARTICIPATE IN an enhanced driver license program and shall report to the
4 governor and the legislature any attempt by agencies or agents of the
5 United States department of homeland security to secure the implementation
6 of an enhanced driver license program through the operations of the United
7 States department of homeland security.

8 B. THE DEPARTMENT SHALL CONTINUE TO MAKE AVAILABLE A DRIVER LICENSE
9 AND NONOPERATING IDENTIFICATION LICENSE PURSUANT TO CHAPTER 8, ARTICLE 4
10 OF THIS TITLE THAT ARE NOT COMPLIANT WITH THE REAL ID ACT OF 2005 AND ANY
11 SUBSEQUENT AMENDMENTS. THE DEPARTMENT SHALL ISSUE A DRIVER LICENSE OR
12 NONOPERATING IDENTIFICATION LICENSE THAT IS NOT COMPLIANT WITH THE REAL ID
13 ACT OF 2005 ONLY TO A PERSON WHOSE STATE OF DOMICILE IS THIS STATE AND
14 WHOSE PRESENCE IN THE UNITED STATES IS AUTHORIZED UNDER FEDERAL LAW. SUCH
15 A DRIVER LICENSE AND NONOPERATING IDENTIFICATION LICENSE SHALL BE MARKED
16 "NOT FOR REAL ID ACT PURPOSES".

17 ~~[C. THE DEPARTMENT SHALL NOT COLLECT, CAPTURE, STORE OR USE ANY~~
18 ~~BIOMETRIC IDENTIFIERS, INCLUDING BIOMETRIC FACIAL IMAGE DATA CONSISTENT~~
19 ~~WITH THE REAL ID ACT'S IMPLEMENTING REGULATION REQUIRING COMPLIANCE WITH,~~
20 ~~INTERNATIONAL STANDARDS FOR BIOMETRIC DATA INTERCHANGE FORMATS OR ANY~~
21 ~~SUCCESSOR STANDARD, IN CONNECTION WITH ISSUING A DRIVER LICENSE OR~~
22 ~~NONOPERATING IDENTIFICATION LICENSE PURSUANT TO SUBSECTION B OF THIS~~
23 ~~SECTION. FOR THE PURPOSES OF THIS SUBSECTION, "BIOMETRIC IDENTIFIERS"~~
24 ~~INCLUDES FACIAL RECOGNITION DATA, IRIS SCANS, FINGERPRINTS, VOICEPRINTS OR~~
25 ~~ANY MEASURABLE BIOLOGICAL OR BEHAVIORAL CHARACTERISTICS USED FOR AUTOMATED~~
26 ~~RECOGNITION OF AN INDIVIDUAL.]~~

27 ~~[D.]~~ [C.] THE DEPARTMENT SHALL NOT RETAIN ANY COPIES OF ORIGINAL
28 OR SECONDARY SOURCE DOCUMENTS USED TO VERIFY A PERSON'S IDENTITY WHEN
29 ISSUING A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE [PURSUANT
30 TO SUBSECTION B OF THIS SECTION EXCEPT WHEN REQUIRED BY FEDERAL LAW FOR
31 THE PURPOSES OF ISSUING A COMMERCIAL DRIVER LICENSE PURSUANT TO CHAPTER 8,
32 ARTICLE 5 OF THIS TITLE].

33 ~~[E.]~~ [D.] ~~[EXCEPT FOR ANY VALID PURPOSE RELATING TO THE NATIONAL~~
34 ~~LAW ENFORCEMENT TELECOMMUNICATIONS SYSTEM,]~~ ANY INFORMATION COLLECTED FROM
35 A PERSON WHEN ISSUING A DRIVER LICENSE OR NONOPERATING IDENTIFICATION
36 LICENSE PURSUANT TO SUBSECTION B OF THIS SECTION SHALL NOT BE ACCESSIBLE
37 TO, SHARED WITH OR STORED IN ANY INTERSTATE, FEDERAL OR INTERNATIONAL
38 DATABASE SYSTEM, INCLUDING THE STATE POINTER EXCHANGE SERVICES[. EXCEPT
39 FOR ANY OF THE FOLLOWING PURPOSES:

40 1. ANY VALID PURPOSE RELATING TO THE NATIONAL LAW ENFORCEMENT
41 TELECOMMUNICATIONS SYSTEM.

42 2. ANY CHECK OF THE PERSON'S DRIVING RECORD REQUIRED BY 49 CODE OF
43 FEDERAL REGULATIONS SECTION 383.73 WHEN ISSUING A COMMERCIAL DRIVER
44 LICENSE PURSUANT TO CHAPTER 8, ARTICLE 5 OF THIS TITLE].

45 [F.] [E.] THE DEPARTMENT SHALL ENSURE THAT EACH PERSON WHO APPLIES
46 FOR A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE IS INFORMED
47 BOTH VERBALLY AND IN WRITING THAT THE PERSON MAY CHOOSE TO BE ISSUED

1 EITHER A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE THAT IS
2 REAL ID-COMPLIANT OR ISSUED PURSUANT TO SUBSECTION B OF THIS SECTION. ANY
3 SIGN, DISPLAY, BROCHURE, ELECTRONIC INTERFACE OR PUBLIC COMMUNICATION IN
4 THIS STATE THAT DESCRIBES OR PROMOTES THE REAL ID ACT OF 2005 SHALL
5 CLEARLY STATE THAT USING A DRIVER LICENSE OR NONOPERATING IDENTIFICATION
6 LICENSE THAT IS REAL ID-COMPLIANT IS VOLUNTARY AND THAT A DRIVER LICENSE
7 OR NONOPERATING IDENTIFICATION LICENSE THAT IS NOT COMPLIANT WITH THE REAL
8 ID ACT OF 2005 IS AVAILABLE AS AN ALTERNATIVE. A DRIVER LICENSE OR
9 NONOPERATING IDENTIFICATION LICENSE APPLICANT SHALL BE GIVEN A LIST OF THE
10 TRANSPORTATION SECURITY ADMINISTRATION'S CURRENTLY ACCEPTABLE FORMS OF
11 IDENTIFICATION.

12 Sec. 3. Title 28, chapter 2, article 2, Arizona Revised Statutes,
13 is amended by adding section 28-340, to read:

14 28-340. Digital or mobile driver license; prohibited
15 acceptance

16 A CITY, TOWN OR COUNTY OR THIS STATE SHALL NOT REQUIRE THE USE OF A
17 DIGITAL OR MOBILE DRIVER LICENSE OR A DIGITAL OR MOBILE NONOPERATING
18 IDENTIFICATION LICENSE FOR IDENTIFICATION PURPOSES FOR ANY GOVERNMENT
19 SERVICE OR PURPOSE. A PHYSICAL DRIVER LICENSE OR NONOPERATING
20 IDENTIFICATION LICENSE SHALL BE ACCEPTED FOR ALL IDENTIFICATION PURPOSES
21 IN THIS STATE.

22 Sec. 4. Section 28-364, Arizona Revised Statutes, is amended to
23 read:

24 28-364. Powers of the director

25 A. The director may provide technical transportation planning
26 expertise to local governments when requested, coordinate local government
27 transportation planning with regional and state transportation planning
28 and guide local transportation planning to ensure compliance with federal
29 requirements. The planning authority granted by this subsection does not
30 preempt planning responsibilities and decisions of local governments.

31 B. If the governor declares a state of emergency, the director may
32 contract and do all things necessary to provide emergency transportation
33 services for the residents in the affected areas whether the emergency
34 transportation is by street, rail or air.

35 C. On a determination that it is in this state's best interest, the
36 director may authorize payment for necessary relocation costs in advance
37 of work being performed if an existing facility owned by the United States
38 must be relocated or adjusted due to construction, modification or
39 improvement of a state highway. The director shall base each advance
40 payment on an estimate of cost of the proposed relocation or adjustment
41 prepared by the federal government and acceptable to the director and
42 shall base the final compensation on the actual agreed cost.

43 D. The director of the department of transportation in consultation
44 with the director of the department of public safety shall develop
45 procedures to exchange information for any purpose related to sections
46 28-1324, 28-1325, 28-1326, 28-1462 and 28-3318.

1 E. The director may establish a system or process that does all of
2 the following:

3 1. Allows for mailing notices of service or other legal documents
4 or records of the department electronically or digitally to a person who
5 consents to receiving these notices, documents or records through a secure
6 electronic or digital system.

7 2. Enables a person to establish a financial account in the
8 department's database. The account shall be accessible by the person or
9 the person's authorized representative to review statements of all
10 transactions associated with the person's account and to make prepayments
11 or payments for authorized transactions with the department.
12 Notwithstanding any other law, monies in financial accounts established
13 pursuant to this section that remain unexpended for a period of five years
14 or more revert to the Arizona highway user revenue fund and shall be
15 distributed pursuant to section 28-6538.

16 3. Allows a person to comply with the photograph update and proof
17 of vision test requirements prescribed by section 28-3173 through
18 electronic or digital means that meet the department's standards.

19 4. Enables the department to accept certificate of title brands
20 from other states or jurisdictions and to record these brands on the
21 appropriate vehicle records.

22 F. The director, in consultation with the Arizona medical board or
23 the state board of optometry, may do all of the following:

24 1. Establish medical and vision standards for driver license
25 applicants and examinations.

26 2. Establish courses of training, training facilities and
27 qualifications and methods of training for driver license examining
28 personnel.

29 3. Establish procedures for the certification of driver license
30 examining personnel and driver license instructors personnel.

31 4. Direct research in the field of licensing drivers. The director
32 may accept public or private grants for the research.

33 5. Conduct research in the field of examination or reexamination of
34 licensing individual drivers with medical or vision problems.

35 6. Set minimum vision standards for the operation of a motor
36 vehicle in this state.

37 G. The director may implement electronic or digital versions of
38 ~~driver licenses, nonoperating identification licenses,~~ vehicle
39 registration cards, license plates or other official records of the
40 department.

41 <<Sec. 5. Section 28-3158, Arizona Revised Statutes, is amended to
42 read:

43 28-3158. Driver license or instruction permit application

44 A. A person who applies for an instruction permit or for a driver
45 license shall use a form furnished by the department.

46 B. An applicant shall pay the fee prescribed by section 28-3002 for
47 a driver license or for an instruction permit issued under section

1 28-3154, 28-3155, 28-3156 or 28-3225. The department shall refund an
2 application fee pursuant to section 28-373.

3 C. An applicant for an instruction permit or a driver license shall
4 give the department satisfactory proof of the applicant's full legal name,
5 date of birth, sex and domicile residence address in this state, if the
6 applicant has a residence address, and that the applicant's presence in
7 the United States is authorized under federal law.

8 D. The application for an instruction permit or a driver license
9 shall state the following:

10 1. A brief description of the applicant and any other identifying
11 information required by the department.

12 2. Whether the applicant has been licensed, and if so, the type of
13 license issued, when the license was issued and what state or country
14 issued the license.

15 3. If the applicant was never licensed, the applicant's last
16 previous state or country of residence.

17 4. The social security number of the applicant.

18 E. The department shall:

19 1. Verify that a social security number provided by an applicant is
20 a valid number assigned to that applicant.

21 2. Retain the social security number in its records.

22 F. The social security number provided to the department pursuant
23 to subsection D of this section for an applicant's driver license or
24 instruction permit shall not appear on an applicant's driver license or
25 instruction permit unless the applicant requests that the social security
26 number appear on the applicant's driver license or instruction permit as
27 the driver license or instruction permit number. Except as provided in
28 sections 28-455 and 41-1954, the department shall not release the social
29 security number to any person unless the applicant requests that the
30 social security number appear on the applicant's driver license or
31 instruction permit as the driver license or instruction permit number.
32 The provisions of this subsection shall be included in each application.

33 G. The department may adopt and implement procedures to deny a
34 driver license or instruction permit to a person who has been deported.
35 The department may adopt and implement procedures to reinstate a person's
36 privilege to apply for a driver license or permit if the person's legal
37 presence status is restored.

38 H. On request of an applicant, the department shall allow the
39 applicant to provide on the license or permit a post office box address
40 that is regularly used by the applicant.

41 I. The department may request an applicant who appears in person
42 for a license, a duplicate license or reinstatement of a driving privilege
43 to complete satisfactorily the vision screening prescribed by the
44 department.

45 J. If a driver license applicant submits satisfactory proof to the
46 department that the applicant is a veteran, on request of the applicant,

1 the department shall allow a distinguishing mark to appear on the license
2 that identifies the person as a veteran.

3 [K. THIS SECTION DOES NOT ALLOW THE DEPARTMENT TO COLLECT, ANALYZE,
4 STORE OR TRANSMIT ANY BIOMETRIC DATA, EXCEPT THAT THE DEPARTMENT MAY
5 TRANSFER THE PHOTO IMAGE REQUIRED PURSUANT TO SECTION 28-3166.]>>

6 Sec. 6. Conditional repeal; notice

7 A. Section 28-3175, Arizona Revised Statutes, is repealed and the
8 department shall immediately rescind all compliance measures with the REAL
9 ID act of 2005 (P.L. 109-13, division B; 119 Stat. 302) and cease to issue
10 REAL ID-compliant driver licenses or nonoperating identification licenses
11 as of the date any of the following occur:

12 1. Division B of the REAL ID act of 2025 is repealed.

13 2. The definition of official purpose in the REAL ID driver's
14 licenses and identification cards (6 Code of Federal Regulations part 37)
15 is modified.

16 3. Federal laws or rules are changed to prohibit state issuance of
17 non-REAL ID-compliant driver licenses or nonoperating identification
18 licenses.

19 B. The department of transportation shall notify the director of
20 the Arizona legislative council in writing of this date.

21 Enroll and engross to conform

22 Amend title to conform

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